

Tentative Rulings for August 11, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVPS2301515	NEW GENERATION INVESTMENTS, LLC VS PALM 10 ASSOCIATES, LLC	MOTION TO TAX COSTS BY PALM 10 ASSOCIATES, LLC

Tentative Ruling: Granted.

Plaintiff's Memorandum of Costs as to Palm 10 Associates is stricken in its entirety.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff, New Generation Investments, LLC, alleges that Defendant, Palm 10 Associates, LLC (Palm 10) owns 246.4 acres of real property located near the intersection of Palm Drive and the I-10 freeway in Palm Springs. Plaintiff alleges that on 10/14/21, High Sand Dessert, LLC and Defendant entered into a Vacant Land Purchase Agreement and Joint Escrow Instructions (PSA), which was later assigned to Plaintiff, an entity with ownership common to High Sand Dessert, LLC. When Plaintiff and Palm 10 met to sign the PSA, the price was \$1.5 million higher than what they had previously agreed to. Defendant, Susan Harvey (Harvey), served as the dual real estate agent of both parties, and represented to them that she had received a "full price offer" for \$10,348,800 (\$1.5 million higher than agreed). Palm 10 heard Harvey's representation, but did not correct her. Plaintiff protested the higher price, but she and Palm 10 indicated that they owed it to Palm 10's partners to get the highest available price for the property. Plaintiff was unaware that Harvey's representation about another offer was false – she had increased the price for Palm 10's benefit to Plaintiff's detriment when Plaintiff was also her fiduciary. Plaintiff alleges that Palm 10 concealed its knowledge that there was no other buyer.

Based on the false representation, Plaintiff signed the PSA, made the requisite deposit, performed all its obligations except those concerning its performance that were frustrated or prevented. Plaintiff ran into obstacles due to the size of the property that fell within multiple municipal jurisdictions with different permitting processes. The parties made amendments to accommodate Plaintiff's due diligence. In about the third quarter of 2022, Plaintiff needed an additional extension of the escrow closing date, which Palm 10 agreed to, and inserted release language as to Palm 10, which excluded claims by Plaintiff against Harvey, as Palm 10's agent. Plaintiff alleges that due to the exclusion Palm 10 remains liable for claims arising out of Harvey's fraudulent conduct. Plaintiff also alleges that Harvey blocked Plaintiff's access to the property, and interfered with its rights and ability to close escrow; that Palm 10 demanded Plaintiff close escrow; and that Plaintiff attempted to obtain an additional extension. Around this time, Plaintiff learned of Harvey's fraudulent misrepresentation; she ultimately acknowledged there was no other offer. Plaintiff then demanded mediation under the Agreement, but Palm 10 has refused to respond to the demand.

Plaintiff filed its Complaint on 4/3/23 alleging five causes of action: 1) breach of contract; 2) specific performance; 3) rescission; 4) breach of fiduciary duty; and, 5) fraud.

On 3/13/24, Cross-Complainant, Palm 10, filed its Cross-Complaint alleging four causes of action: 1) breach of contract for damages; 2) breach of contract for specific performance; 3) negligent misrepresentation; and, 4) intentional misrepresentation.

This matter was tried before a jury beginning on 2/3/26. Following deliberation, the jury returned a verdict, which provided no relief on any of Plaintiff's causes of action against Palm 10, Harvey, or Desert Pacific Properties or Palm 10's causes of action against Plaintiff. (see 3/16/26 Defense Judgment.)

On April 10, 2026, Plaintiff filed a Memorandum of Costs ("MOC") seeking \$43,124.11.

Defendant/Cross-Complainant, Palm 10 Associates, LLC (Palm 10), brings this motion to strike/tax costs claimed by Plaintiff/Cross-Defendant, New Generation Investments, LLC in its Memorandum of Costs (MOC) in the amount of \$42,124.11 filed on 4/10/26. Palm 10 argues that the entire MOC must be stricken/taxed on the ground that Plaintiff was not the prevailing party in this action so, Plaintiff cannot recover any costs. Palm 10 asserts that it, rather than Plaintiff, is the prevailing party having obtained both a monetary and non-monetary recovery.

Plaintiff/Cross-Defendant, New Generation Investments, LLC (New Generation), opposes the motion arguing that Plaintiff is the prevailing party as to Palm 10's Cross-Complaint having obtained a complete defense verdict on each cause of action; that Palm 10's motion fails to acknowledge the distinction in the verdict as it does not mention the outcome as to the Cross-Complaint, cites no authority as to dueling pleadings, and challenges no specific cost item; that as a result, the motion must be denied and Plaintiff awarded all costs claimed in its MOC.

The Reply asserts that New Generation did not address the "prevailing party" definition in CCP § 1032(b) as to costs; that both New Generation and Palm 10 tried to keep the \$1.5 million in earnest money deposits and extension fees; that Palm 10 prevailed on that claim as it was awarded the net monetary recovery of \$1.5 million; and re-asserts prior arguments.

Motion to Tax Costs

Cal. Rules of Court ("CRC"), Rule 3.1700, which provides that a prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of the mailing of the entry of judgment An extension for filing this document can be given by the court or through an agreement by the parties. "[T]he court may extend the times for serving and filing the cost memorandum or notice of motion to strike or tax costs for a period not to exceed 30 days." (*Id.* at (b)(3).)

The losing party may dispute any or all of the items in the prevailing party's costs memorandum. (CRC, Rule 3.1700(b)). Technically, a motion to strike challenges the entire costs bill whereas a motion to tax challenges particular items or amounts. The terms are often used interchangeably and there is no difference in the procedural rules. (CRC, Rule 3.1700(b).)

Defendant/Cross-Complainant, Palm 10, argues that Plaintiff's entire MOC must be stricken/taxed because Plaintiff is **not** the "prevailing party" in this action. In general, the prevailing party "is entitled *as a matter of right* to recover costs of suit in any action or proceeding. (Weil & Brown, CPG: Civil Trials and Evidence (TRG 2026) § 17:205 citing *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606.) Where the requirements for a prevailing party are met, "the trial court has *no* discretion to order each party to bear their own costs of suit. (*Id.* citing *Michell v. Olick* (1996) 49 Cal.App.4th 1194, 1198.)

The term "prevailing party" is defined by statute to include: "The party with a *net monetary recovery*"; a defendant who is *dismissed* from the action; a defendant where *neither* plaintiff nor defendant recovers anything; and "[a] defendant as against those plaintiffs who do not recover any relief against that defendant." (*Id.* § 17:206.) "If the party does not fall into one of these four express categories, the court may exercise its *discretion* to award or deny costs. (*Id.* citing *Lincoln v. Schurgin* (1995) 39 Cal.App.4th 100, 105.) This is the case even if the prevailing party obtains only partial recovery (e.g., prevails on only one of several causes of action.) (*Id.* § 17:208 citing *Vought Const. Inc. v. Stock* (2022) 84 Cal.App.5th 622, 635; *Michell, supra.* at 1199.) Notably, "plaintiff" includes cross-complainants and "defendant" includes cross-defendants. (*Id.* § 17:228.)

Here, the "Defense Judgment" was filed on 3/16/26, and entered on 3/24/26. It attaches the jury's verdict as Exhibit "A". As to Plaintiff's Complaint, the jury found no liability by Defendants, Palm 10, Harvey, and Desert Pacific Properties (DPP) to New Generation's Complaint. (Defense Judgment p. 17 of 21.) The jury also found no liability by New Generation as to Palm 10's Cross-Complaint. (*Ibid.*) The verdict further provided that New Generation "shall take nothing" from Palm 10, Harvey, and DPP for its claims asserted in its Complaint. (*Ibid.*) And, Palm 10 "shall take nothing" from New Generation. (*Ibid.*)

Palm 10 argues that both Plaintiff and Palm 10 sought the \$1.5 million in deposit and extension fees. Palm 10 asserts that it was the prevailing party on its Cross-Complaint because it obtained a "net monetary recovery" when the \$1.5 million was awarded to it. However, the verdict did not make any award to Palm 10. It merely provided that New Generation was "not entitled to a return of its deposits and/or extension fees." (*Id.* p. 19 of 22.) These circumstances do not indicate that Palm 10 obtained a "net monetary recovery" to make it the prevailing party.

Nonetheless, Palm 10 correctly argues that New Generation does not fit within any definition of "prevailing party." As such, it cannot be the "prevailing party" for purposes of costs here. Thus, New Generation is not entitled to costs as it is not the prevailing party and its MOC must be stricken in its entirety.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2406737	PAQUIN VS UNITED EXPRESS TRUCKING, INC.	MOTION TO COMPEL PLAINTIFF'S APPEARANCE AT DEPOSITION BY UNITED FREIGHT SERVICE, INC.

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a vehicular collision case. On January 3, 2024, Plaintiff Daniel Paquin ("Plaintiff") was driving a FedEx Kenworth Tri-Axle vehicle with attached semi-trailers during the course and scope of his employment with FedEx. Defendant Eliseo Castaneda ("Castaneda") was driving a Freightliner Cascadia truck owned and operated by his employer, Defendant United Express Trucking ("UET") with a trailer owned by Defendant United Freight Services ("Defendant"). Plaintiff alleges that Castaneda's truck improperly veered into his lane and collided with Plaintiff's vehicle, causing it to overturn and slide into oncoming traffic. Plaintiff was trapped upside down until fire rescue arrived. Castaneda fled the scene of the accident.

Plaintiff filed his Complaint on October 21, 2024 and the operative First Amended Complaint on April 16, 2025. Plaintiff asserts four causes of action for: (1) Motor Vehicle; (2) General Negligence/Negligence Per Se; (3) Negligent Hiring/Retention; and (4) Strict Liability.

On May 11, 2026, Defendant served a deposition notice to take Plaintiff's deposition on June 15, 2026. On June 11, 2026, Plaintiff served objections indicating that he would not appear until after the deposition of Defendant's Person Most Qualified (PMQ).

Defendant now moves to compel Plaintiff's deposition. Defendant argues that it met and conferred with Plaintiff, but Plaintiff did not provide deposition dates. Defendant argues that there is no statutory basis to demand that the PMQ deposition take place before Plaintiff's deposition. Defendant argues that the objection was improper, and Plaintiff should have filed a motion for protective order or to quash the deposition notice. Defendant requests sanctions in the amount of \$1,155.00.

Plaintiff argues that the Motion is moot because counsel stated in writing that Plaintiff was available for deposition in early August. Plaintiff argues that the present Motion is a misuse of discovery filed to force a trial continuance to allow for its untimely Motion for Summary Judgment (MSJ). Plaintiff requests sanctions in the amount of \$1,500.

Motion to Compel Deposition

Any party may obtain discovery by taking the deposition of any person, including a party to the action. (CCP § 2025.010.) Pursuant to CCP §2025.450, if, after service of a deposition notice, a party to the action without having served a valid objection under Section 2025.410, fails to appear for examination, the party giving notice may move for an order compelling the deponent's attendance and testimony, and the production of any document, ESI or tangible thing described in the deposition notice. (CCP §2025.450(a).)

A motion to compel under section 2025.450 must be accompanied by a meet and confer declaration under Section 2016.040, or when the deponent fails to attend the deposition, by a declaration stating that the moving party has contacted the deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) Implicit in the requirement is that counsel make a good faith attempt to resolve the issue by rescheduling the deposition. (*Leko v. Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th. 1109, 1124.) The meet and confer declaration must state facts showing that the parties made a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (CCP § 2016.040.)

On May 11, 2026, Defendant served a Notice of Taking the Videotaped Deposition of Plaintiff Daniel P. Paquin (“Deposition Notice”). (Decl. of Petrick, ¶ 8; Ex. A.) On June 11, 2026, Plaintiff served objections. (Id at ¶ 9; Ex. B.) Counsel asserts that she advised Plaintiff’s counsel that she would be forced to file a motion to compel if Plaintiff did not appear. (Id at ¶ 9.) However, there is no evidence that Defendant attempted to resolve the issues raised by Plaintiff’s objection. Nor does counsel indicate whether any additional deposition dates were provided. On June 11, 2026, Defendant took a notice of non-appearance. (Id at ¶ 11.)

Counsel for Plaintiff states that on July 15, 2026, prior to the filing of the present Motion on July 21, he sent a meet and confer letter to Defendant’s counsel advising him that Plaintiff would be available for deposition in early August. (Decl. of Zucker, ¶ 4; Ex. 1.) This correspondence was not mentioned in defense counsel’s declaration. Again, on July 24, 2026, Plaintiff’s counsel stated that the Motion was unnecessary because he had already agreed to produce Plaintiff for deposition in August. (Id at ¶ 5; Ex. B.) Plaintiff contends that defense counsel’s response to the July 24 letter indicates that the Motion was filed in retaliation for Plaintiff’s refusal to stipulate to a trial continuance. (Id.) Overall, the meet and confer in this case appears to have been insufficient.

Sanctions:

“If a motion [to compel deposition] is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent...unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §§2025.450(g)(1).) A responding party’s untimely response to discover does not divest the trial court of the authority to hear a motion to compel. (*Sinaiiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 407.)

Here, moving party was not successful. Sanctions are denied.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501786	PENICK VS EISENHOWER MEDICAL CENTER	MOTION TO COMPEL RESPONSE TO FORM INTERROGATORIES, SET ONE, BY ARLENE PENICK

Tentative Ruling: Moot as to substantive motion, but granted as to sanctions.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Arlene Penick (“Plaintiff”) slipped and fell at Defendant Eisenhower Medical Center (“Defendant”) causing her personal injuries. On March 14, 2025, Plaintiff filed her complaint alleging two causes of action: 1) general negligence; and 2) premises liability.

Plaintiff moves to compel initial responses to form interrogatories, set one from Defendant, which were served on January 8, 2026. Plaintiff’s counsel declares he gave extensions to April 15, 2026 to respond, but no verified responses were received by that date. Plaintiff also requests sanctions of \$2,565 (\$450 x 5.7 hours + \$60 filing fee).

In opposition, Defendant states its counsel requested an extension to May 6, 2026, but Plaintiff only provided until April 15, 2026. Defendant's counsel's office served unverified responses April 15, 2026, Plaintiff filed the motion May 5, 2026 and verified responses were served May 12, 2026. Defendant argues sanctions are not appropriate as counsel inadvertently forgot to follow up on her client's execution of the verification, but did so promptly after receiving the motion and served the verification upon receipt.

In reply, Plaintiff argues Defendant's late responses were so poor that they required a 24 page meet and confer letter and as such sanctions are appropriate.

Motion to Compel Response(s)

Code of Civil Procedure sections 2030.290(b) allows the propounding party to file a motion to compel responses to interrogatories if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a).)

Here, it is undisputed that Defendant served verified responses after the motion was filed and as such, the motion is moot.

Sanctions

The real issue appears to be sanctions. For interrogatories, section 2030.290(c) provides that "the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct. 3.1348(a).)

Here, defense counsel requested a continuance to May 6, Plaintiff's counsel provided until April 15 and Defendant served unverified responses on April 15. Defense counsel did not provide an explanation for not having the verification prior to service, other than she forgot to follow up with her client because other matters needed immediate attention. However, that does not excuse failing to respond timely. Sanctions are warranted.

However, Plaintiff's request for \$2,565 is too much for this straightforward motion. Reduced to \$960.00 (2 hours x \$400 + \$60 filing fee) payable within 30 days of this order becoming final to Plaintiff by Defendant and Defense counsel jointly.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2505858	DOE K.C., AN INDIVIDUAL VS DOE 1, A PUBLIC ENTITY	DEMURRER ON 1ST AMENDED COMPLAINT OF JOHN DOE K.C., AN INDIVIDUAL

Tentative Ruling: Overruled.

Responding party to provide notice pursuant to CCP 1019.5.

This is a revival action under CCP § 340.1 for damages arising from childhood sexual assault at a county-operated juvenile detention facility. (First Amended Complaint [“FAC”] ¶¶ 15, 20, 71.) Plaintiff John Doe K.C. (“Plaintiff”), born September 8, 1985, alleges that from approximately November 1999 through March 2000, while he was a minor confined at Indio Juvenile Hall (“IJH”) in Indio, California, he was subjected to repeated acts of childhood sexual assault, molestation, and harassment by County employees, including Defendants Baptist, Glass, and others. (First Amended Complaint [“FAC”] ¶¶ 16, 20.)

Plaintiff further alleges that Defendant Silva, a schoolteacher at the facility, and other employees knew of the abuse but took no remedial action, failed to report it as mandated reporters under the Child Abuse and Neglect Reporting Act, and actively covered it up in a concerted effort to hide evidence of systemic sexual abuse at IJH. (*Id.* at ¶¶ 21, 29.)

On August 8, 2025, Plaintiff filed his original Complaint against Doe 1 and Does 2 through 100. On February 20, 2026, Plaintiff filed a Doe Amendment substituting Defendant County of Riverside (the “County”) in place of the fictitiously named Doe 1.

On April 9, 2026, Plaintiff filed the operative First Amended Complaint (“FAC”), asserting five causes of action against the County and individual Doe defendants: (1) failure to summon medical care; (2) negligence; (3) breach of mandatory statutory duties; (4) intentional infliction of emotional distress (“IIED”); and (5) violation of the Bane Act (Civ. Code § 52.1).

In the instant motion, the County demurs to the entire FAC, arguing that it is immune from liability under Gov. Code § 844.6 because Plaintiff was a juvenile detained at IJH pursuant to a court order, classifying him as a “prisoner.” The County also demurs to individual claims: (1) the first cause of action (failure to summon medical care) is time-barred and not subject to CCP § 340.1; (2) the fourth cause of action (IIED) fails because no statute authorizes such liability against a public entity; and (3) the fifth cause of action (Bane Act) fails because CCP § 340.1 does not apply, Civ. Code § 52.1(n) cannot apply retroactively to conduct from 1999-2000, no government tort claim was presented, the Bane Act cannot be premised on omissions, and no vicarious liability attaches because the alleged sexual misconduct was outside the scope of employment.

In opposition, Plaintiff argues that the County’s demurrer should be overruled as it overlooks numerous viable claims based on childhood sexual assault, including negligence and IIED. Plaintiff contends that CCP § 340.1 applies to all claims arising from childhood sexual assault and therefore does not require prior government claim presentation, and challenges the application of immunity under Gov. Code § 844.6, asserting that it does not apply to juvenile wards. Plaintiff also argues the Bane Act claim is properly stated.

In reply, the County maintains that Plaintiff’s opposition does not address essential statutory defects highlighted in their demurrer. The County asserts that Gov. Code § 340.1 cannot be interpreted to override governmental immunities or satisfy the conditions for liability. Additionally, it reiterates that juvenile detainees are considered “prisoners” under section 844.6, maintaining immunity from claims of injury as asserted by Plaintiff.

Request for Judicial Notice

Plaintiff requests the Court take judicial notice of Senate Committee on Judiciary, Analysis of Sen. Bill 2 “An act to amend Section 52.1 of the Civil Code....” (2021-2022 Reg. Sess.), April 26, 2021 (Exhibit A). (Pl.’s Request for Judicial Notice [“RJN”], Ex. A.) This legislative committee report and bill analysis constitute cognizable legislative history materials for purposes of judicial notice. (*Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc.* (2005) 133 Cal.App.4th 26, 31–37.) *Kaufman* instructs that parties moving for judicial notice of legislative history materials are not required to demonstrate the need to resort to a statute’s legislative history at the time of the request. (*Id.* at 30.) GRANTED as to Exhibit A.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defects can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The County demurs to the entire FAC based on immunity under Gov. Code § 844.6. It also specifically challenges the first cause of action for failure to summon medical care, the fourth cause of action for IIED, and the fifth cause of action for violation of the Bane Act, arguing that each of these claims fails to state sufficient facts and is barred by statute of limitations and governmental immunity.

Before filing a demurrer and motion to strike, the moving party must meet and confer with the party who filed the pleading “in person, by telephone, or by video conference” for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (CCP §§ 430.41(a), 435.5(a), 2016.040(a).)

Here, the County’s meet-and-confer efforts consisted solely of written correspondence sent via email on June 8, 2026. (Dade Decl. ¶ 3, Ex. A.) The Declaration of Chaena Dade states only that she “sent meet-and-confer correspondence to Plaintiffs’ counsel” and that “the parties were unable to resolve the dispute.” (*Id.* at ¶¶ 3–4.) Accordingly, the County did not satisfy its meet and confer obligation as required by statute.

Immunity Under Gov. Code § 844.6

The County demurs to the entire FAC on the ground that it is immune from liability under Gov. Code § 844.6(a)(2) because Plaintiff was a “prisoner” at the time of his injuries. The County asserts that section 844.6 provides immunity to public entities for injuries sustained by any prisoner and that juveniles placed at a juvenile hall fit this classification.

Gov. Code § 844.6(a)(2) states: “[A] public entity is not liable for . . . [a]n injury to any prisoner” unless enumerated exceptions are invoked. (Gov. Code § 844.6(a)(2) [emphasis added].) In *Jiminez v. County of Santa Cruz* (1974) 42 Cal.App.3d 407, the California Court of Appeal held that “a ward of the juvenile court, committed to a place of custody [] is one involuntarily restrained, one who is in custody as the result of a legal process, and one deprived of his liberty by virtue of a judicial . . . process.” (*Id.* at 410 [internal quotation marks & quotation omitted] [emphasis added].) The court held that such individual qualifies as a “prisoner” under section 844.6. (*Id.*)

In *Patricia J. v. Rio Linda Union School District* (1976) 61 Cal.App.3d 278, the California Court of Appeal clarified that “to come within the purview of section 844.6, a prisoner must be a person confined in a correctional facility or institution under the authority of law enforcement authorities or legal process” and that this “definition of a prisoner applies equally to wards of the juvenile court as well as to adults.” (*Id.* at 287.)

The County contends that section 844.6 provides immunity in circumstances involving individuals classified as prisoners based on their detention status. Relying on *Jiminez* and *Patricia J.*, the County asserts that juveniles placed under court orders in a juvenile hall should logically be considered prisoners under the law. It then contends that the FAC “acknowledges that [Plaintiff] was detained and incarcerated at the juvenile hall and that his confinement was court ordered, which are quintessential characteristics of a prisoner.” (Def.’s Demurrer 12:11–16 [emphasis added].)

However, the FAC does not support the County’s characterization. The FAC alleges only that (1) “IJH was a juvenile hall and/or youth detention center, owned, operated, controlled, managed, maintained, inspected, patrolled, and overseen by Defendants” (¶ 15) and (2) “Plaintiff was in the care and custody of Defendants at IJH” from approximately November 1999 through March 2000 (¶ 16). The FAC does not allege that Plaintiff was “detained and incarcerated” or that his confinement was “court ordered.” There are no allegations that Plaintiff had been adjudged a ward of the juvenile court.

As Plaintiff correctly notes, under Welf. & Inst. Code § 850, persons merely “alleged to come within the jurisdiction of the juvenile court” may also be housed at a juvenile hall. (Welf. & Inst. Code § 850.) Thus, a juvenile may be placed at a facility like IJH without having been adjudicated a ward—meaning the FAC’s allegation that Plaintiff was in the “care and custody” of Defendants does not, by itself, establish “prisoner” status under section 844.6. Neither *Jiminez* nor *Patricia J.* establish that a juvenile housed at a juvenile hall is necessarily a prisoner absent adjudication as a ward.

A demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense. (*Stella v. Asset Mgmt. Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191.) Here, the County has not established that the face of the FAC discloses its immunity defense. The County’s purported inferences are insufficient because a demurrer “is not the appropriate procedure for determining the truth of disputed facts or what inferences should be drawn where competing inferences are possible.” (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 921–22.)

Therefore, the demurrer to the entire FAC on the ground of section 844.6 immunity is OVERRULED.

1ST Cause of Action - Failure to Summon Medical Care

Gov. Code § 844.6 provides general immunity to public entities from liability for injury to prisoners. (Gov. Code § 844.6(a)(2).) Section 845.6 creates a narrow exception: A public entity is immune from claims based on injuries to prisoners caused by a failure to provide medical care, except when an employee, “acting within the scope of his employment, . . . knows or has reason to know that the prisoner is in need of medical care and he fails to take reasonable action to summon such medical care.” (Gov. Code § 845.6 [emphasis added]; *Castaneda v. Dep’t of Corrs. & Rehabilitation* (2013) 212 Cal.App.4th 1051, 1070.) Gov. Code § 815.2 likewise imposes vicarious liability only for an employee’s act or omission within the scope of employment.

The County demurs to the first cause of action for failure to summon medical care under Gov. Code 845.6 on the grounds that (1) it cannot be held vicariously liable under Gov. Code § 815.2 for its employees’ sexual misconduct, and (2) the claim is barred by the statute of limitations, as Plaintiff failed to timely present a tort claim to the County, and CCP § 340.1 (which extends the statute of limitations period) does not apply to excuse that failure.

The County’s first argument is that the alleged sexual misconduct by County employees falls outside the scope of employment. That is generally consistent with *Lisa M. v. Henry Mayo Newhall Memorial Hosp.* (1995) 12 Cal.4th 291, which held that a hospital technician’s sexual assault was not “engendered by” or an “outgrowth” of his employment where it was the product of personal motives unrelated to the work. (*Id.* at 300.) But this argument does not fit the claim pleaded here, because the section 845.6 claim is not based on the sexual assault itself, but on the alleged failure to summon medical care after employees knew or had reason to know of Plaintiff’s need for immediate care. (See FAC ¶¶ 31–33.) Plaintiff alleges that Defendant Silva, his teacher, knew of that abuse and failed to act. (*Id.* at ¶¶ 5, 17, 21, 26, 32.) On demurrer, that alleged failure is the relevant conduct for purposes of sections 845.6 and 815.2. The County’s scope of employment argument therefore is not persuasive at the pleading stage.

The County further argues that the section 845.6 cause of action is barred because the FAC does not allege timely compliance with the Government Claims Act, and CCP § 340.1’s extended statute of limitations for childhood sexual assault does not apply to a failure to summon medical care claim under section 845.6, and therefore, cannot excuse Plaintiff’s failure to comply with the claims presentation requirement.

Section 340.1(a) authorizes “actions for recovery of damages suffered as a result of childhood sexual assault” “against any person or entity” if their “negligent” or “intentional” act was a legal cause of the childhood sexual assault that resulted in the plaintiff’s injury. (CCP §§ 340.1(a)(2)–(3).) Section 340.1(c) then expressly provides that the statute “does not limit the availability of causes of action permitted under subdivision (a).” (*Id.* at § 340.1(c).) In the first cause of action for failure to summon medical care, Plaintiff alleges that Defendants knew or had reason to know that Plaintiff needed immediate medical care due to the sexual assaults, and that their failure to summon such care caused

Plaintiff's abuse to continue and exacerbated his damages. (FAC ¶¶ 32, 34.) These are damages "suffered as a result of childhood sexual assault" within the meaning of section 340.1.

Moreover, section 340.1(q) provides that "[n]otwithstanding any other law . . . a claim for damages described in . . . subdivision (a), is not required to be presented to any government entity prior to the commencement of an action." (CCP § 340.1(q) [emphasis added].) The phrase "notwithstanding any other law" demonstrates legislative intent to override all contrary law. (See *Klajic v. Castaic Lake Water Agency* (2004) 121 Cal.App.4th 5, 13.) Because Plaintiff brings the failure to summon medical care claim under section 340.1 as an action for recovery of damages resulting from childhood sexual assault, the Government Claims Act does not bar the claim. **OVERRULED**

4TH Cause of Action - IIED

Gov. Code § 815(a) provides that a public entity is not liable for an injury unless a statute so provides. (Gov. Code § 815(a).) The purpose of the Government Claims Act is to confine potential governmental liability to rigidly delineated circumstances, not to expand it. (*Eastburn v. Regional Fire Protection Auth.* (2003) 31 Cal.4th 1175, 1179.) Gov. Code § 815.2(a) provides that a public entity is liable for injury proximately caused by an act or omission of an employee within the scope of employment. (Gov. Code § 815.2.) This provision incorporates general respondeat superior standards as the primary basis for vicarious liability of public entities. (*Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 210–11.)

The County's first argument is that IIED is a common law tort and no statute independently authorizes its imposition against a public entity. The County is correct that section 815 abolished common law governmental liability and that a public entity's liability must be founded on statute. (Gov. Code § 815.) However, section 815.2 is such a statute. It expressly creates vicarious liability for a public entity when an employee's tortious act or omission occurs within the scope of employment. (Gov. Code § 815.2.) Thus, if an employee commits IIED while acting within the scope of employment, the public entity is vicariously liable under section 815.2. (*Id.*) The FAC expressly invokes section 815.2 as the statutory basis for County liability. (FAC ¶ 60.)

The County argues that the alleged conduct was not within the scope of employment such that section 815.2 applies, because sexual misconduct is not required by or incident to employment duties. Indeed, the court in *Lisa M.* held that a hospital technician's sexual assault was not engendered by or an outgrowth of employment. (*Lisa M.*, *supra*, 12 Cal.4th at 300–01.) However, the court also held that when a public employee misuses official authority to commit a sexual assault, the public entity can be held vicariously liable under respondeat superior. (*Mary M.*, *supra*, 54 Cal.3d at 207, 216–17.) The distinction turns on whether the employee's position of authority over the victim furnished the opportunity for the misconduct.

Here, Plaintiff alleges that County employees in positions of custodial authority over a juvenile in County custody committed the sexual assaults, and that other employees

covered up the abuse. (FAC ¶¶ 16, 18, 58–59.) Under *Mary M.*, where employees misuse official authority granted by a public entity to sexually assault persons in their custody, the scope of employment question is, at minimum, a question of fact that cannot be resolved on demurrer. (*Mary M.*, *supra*, 54 Cal.3d at 214, 221.) Thus, the County’s assertion that sexual misconduct is outside the scope of employment as a matter of law is inconsistent with *Mary M.*, at least where, as here, Plaintiff alleges that the employees held custodial authority over the victim.

To the extent the County argues that CCP § 340.1 does not apply to this claim, that argument is unpersuasive. CCP § 340.1(q) provides that claims for damages suffered as a result of childhood sexual assault need not be presented to a government entity before suit. (CCP § 340.1(q).) Here, the IIED claim seeks damages for emotional distress caused by the childhood sexual assault itself, placing it squarely within section 340.1(a). (FAC ¶ 59.) Section 340.1(q)’s exemption from the claims presentation requirement therefore applies to this cause of action. OVERRULED

5TH Cause of Action - Violation of Bane Act

The elements of a Bane Act claim are: (1) defendant interfered with or attempted to interfere with plaintiffs’ constitutional or statutory right by threatening or committing violent acts; (2) plaintiffs reasonably believed that if they exercised their constitutional right the defendant would commit violence against them or their property; (3) defendant injured plaintiffs or their property to prevent them from exercising their constitutional right or retaliated against plaintiffs for having exercised their constitutional right; (4) plaintiffs were harmed; and (5) defendant’s conduct was a substantial factor in causing plaintiffs’ harm. (*Austin B. v. Escondido Union Sch. Dist.* (2007) 149 Cal.App.4th 860, 882.)

The County argues that CCP § 340.1 does not apply to Plaintiff’s Bane Act claim, because it does not seek damages “resulting from sexual assault” within the meaning of that section. Specifically, the County contends that the injury Plaintiff is claiming is not for damages caused by childhood sexual assault (*i.e.*, emotional or physical injuries stemming from sexual assault/battery) but for damages resulting from an alleged deprivation of a constitutional right. Citing *Coats v. New Haven Unified School District* (2020) 46 Cal.App.5th 415, the County asserts that section 340.1 cannot be interpreted broadly to encompass any claim related to sexual assault, and that the statute was not intended to extend to claims where the ultimate injury is a deprivation of a civil right.

CCP § 340.1(a) governs “actions for recovery of damages suffered as a result of childhood sexual assault.” Section 340.1(c) defines “childhood sexual assault” as “any act committed against the plaintiff that occurred when the plaintiff was under the age of 18 years and that would have been proscribed by [certain Penal Codes].” (CCP § 340.1(c).) It then expressly states: “This subdivision does not limit the availability of causes of action permitted under subdivision (a), including causes of action against persons or entities other than the alleged perpetrator of the abuse.” (*Id.* [emphasis added].)

The County’s reliance on *Coats* is misplaced. That case addressed whether a third party non-victim, specifically a parent or sibling of an abused child, could invoke section 340.1’s extended limitations period to recover for derivative emotional distress injuries. The *Coats*

court held that the statute did not extend to such third-party claims because the statute refers to damages suffered by the victim “as a result” of the assault, not damages suffered by third parties as a result of witnessing or learning of the assault.

Here, Plaintiff is the direct victim, not a third party. The FAC alleges that Plaintiff was subjected to childhood sexual assaults by County employees while housed at IJH. The Bane Act claim incorporates those assault allegations and seeks damages for physical and emotional injuries caused by the assaults. Coats does not stand for the proposition that section 340.1 should be read narrowly when the direct victim brings claims arising from his own assault. To the contrary, section 340.1(c) expressly states it does not “limit the availability of causes of action permitted under subdivision (a), including causes of action against persons or entities other than the alleged perpetrator of the abuse.” (CCP § 340.1(c).)

The County next argues that under Civ. Code § 52.1(h), “[t]he Legislature expressly prohibited the Bane Act from being asserted with or falling within the purview of section 340.1.” (Def.’s Demurrer 9:25–26.) Section 52.1(h) states: “An action brought pursuant to this section is independent of any other action, remedy, or procedure that may be available to an aggrieved individual under any other provision of law.” (Civ. Code § 52.1(h) [emphasis added].) The County contends that this language bars application of section 340.1’s protections to Bane Act claims.

The County’s argument lacks merit. Section 52.1(h) says “independent of ” of other action or procedure, not that the claim is “excluded from” other procedural protections. (Civ. Code § 52.1(h).) “The Legislature is presumed to know what it was saying and to have meant what it said when it enacts or amends legislation.” (*Kemp v. Schultz* (1981) 121 Cal.App.3d 13, 18; see also *Singh v. Sup. Ct.* (2006) 140 Cal.App.4th 387, 400 [“The Legislature is presumed to know existing law at the time it enacts a statute.”].) Here, if the Legislature had intended to insulate Bane Act claims from section 340.1’s framework, it would have done so expressly. The County identifies no authority construing section 52.1(h) as a bar to the application of procedural protections from other statutes when the Bane Act claim falls within those statutes’ scope.

Given that section 340.1 applies to this claim, the County’s argument that this claim is time-barred for failing to present a tort claim within six months under Gov. Code § 945.4 fails as well. (See CCP § 340.1(q) [“Notwithstanding any other law, . . . a claim for damages described in . . . subdivision (a), is not required to be presented to any government entity prior to the commencement of an action.”].)

The County further argues that governmental immunity under Gov. Code § 844.6 extends to a Bane Act claim. The County asserts that Civ. Code § 52.1(n), which provides that section 844.6 does not apply to Bane Act claims against custodial officers or directly against the employing public entity, does not apply retroactively to conduct occurring in 1999-2000, as it became effective January 1, 2022.

Section 844.6 generally immunizes a public entity from liability for injury to a prisoner. However, as discussed in Section 1(a) above, the County has not sufficiently established on the face of the complaint that it is entitled to section 844.6 immunity. Specifically, the FAC contains no allegation that Plaintiff was confined pursuant to court orders, that he

had been adjudged a ward of the juvenile court, or that he was incarcerated pursuant to lawful penal processes, to constitute “prisoner” within the meaning of section 844.6.

As to section 52.1(n), the County argues that this provision is a substantive amendment that does not apply retroactively to conduct occurring in 1999-2000. However, the Court need not reach this issue since the application of immunity under section 844.6 has not been sufficiently established on the face of the FAC.

The County finally argues that Plaintiff’s Bane Act claim fails because it alleges only “mere inaction,” including failures to report, failures to act, and omissions. The County contends these omissions do not satisfy the Bane Act’s requirement of interference by threat, intimidation, or coercion. This argument is without merit.

In the FAC, Plaintiff alleges that “Defendants unlawfully and wrongfully used, or employed others to wrongfully use, threats, intimidation, harassment, violence, retaliation, and coercion over the Plaintiff’s person, to which the Plaintiff had no relief except to submit[.]” (FAC ¶ 73.) It further alleges that a reasonable person “would have been intimidated, threatened, or coerced by the actions and/or attempted actions of Defendants.” (*Id.* at ¶ 74.)

More significantly, the FAC incorporates the underlying sexual assault allegations. (*Id.* at ¶ 65.) It alleges that County employees Baptist and Glass committed repeated nonconsensual assaults including groping, forcibly placing Plaintiff’s hand on their genitals, throwing soap to force exposure, and attempting to force oral sex. (*Id.* at ¶ 20.) These are not omissions, but rather they are intentional physical acts. The FAC alleges that these employees acted within the course and scope of County employment. (*Id.* at ¶ 17.)

The FAC also alleges affirmative concealment and cover-up of the sexual assaults. It alleges that during Plaintiff’s time at the facility, Defendants “engage[d] in unlawful tactics by, without limitation, ignoring, concealing, and ultimately suppressing the Plaintiff’s complaints of being sexually abused.” (*Id.* at ¶ 67.) It alleges that Plaintiff “was threatened, intimidated, retaliated against, and coerced into not reporting or underreporting Defendants’ sexually abusive and harassing acts by Defendants’ own intimidating, threatening, coercive, and humiliating conduct.” (*Id.* at ¶ 68.) These allegations describe affirmative conduct, not passive failure to act. At the pleading stage, these allegations are sufficient to allege interference by threat, intimidation, or coercion. **OVERRULED**

5.

CASE #	CASE NAME	HEARING NAME
CVPS2505858	DOE K.C., AN INDIVIDUAL VS DOE 1, A PUBLIC ENTITY	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF JOHN DOE K.C., AN INDIVIDUAL

Tentative Ruling: Granted and denied in part.

Plaintiff granted leave to file 2nd Amended Complaint only solely to add an express carve-out making clear those treble-damages allegations are asserted only against non-public

entity defendants. 2nd Amended Complaint must be filed within 5 days of this order becoming final.

Responding party to provide notice pursuant to CCP 1019.5.

This is a revival action under CCP § 340.1 for damages arising from childhood sexual assault at a county-operated juvenile detention facility. (First Amended Complaint [“FAC”] ¶¶ 15, 20, 71.) Plaintiff John Doe K.C. (“Plaintiff”), born September 8, 1985, alleges that from approximately November 1999 through March 2000, while he was a minor confined at Indio Juvenile Hall (“IJH”) in Indio, California, he was subjected to repeated acts of childhood sexual assault, molestation, and harassment by County employees, including Defendants Baptist, Glass, and others. (First Amended Complaint [“FAC”] ¶¶ 16, 20.)

Plaintiff further alleges that Defendant Silva, a schoolteacher at the facility, and other employees knew of the abuse but took no remedial action, failed to report it as mandated reporters under the Child Abuse and Neglect Reporting Act, and actively covered it up in a concerted effort to hide evidence of systemic sexual abuse at IJH. (*Id.* at ¶¶ 21, 29.)

On August 8, 2025, Plaintiff filed his original Complaint against Doe 1 and Does 2 through 100. On February 20, 2026, Plaintiff filed a Doe Amendment substituting Defendant County of Riverside (the “County”) in place of the fictitiously named Doe 1.

On April 9, 2026, Plaintiff filed the operative First Amended Complaint (“FAC”), asserting five causes of action against the County and individual Doe defendants: (1) failure to summon medical care; (2) negligence; (3) breach of mandatory statutory duties; (4) intentional infliction of emotional distress (“IIED”); and (5) violation of the Bane Act (Civ. Code § 52.1).

In the instant motion, the County concurrently moves to strike portions of the Plaintiff’s FAC, arguing that the requests for treble damages and punitive damages are improper under California law, specifically citing Gov. Code § 818’s immunity from punitive damages against public entities. It contends the damages sought are not recoverable and the allegations are irrelevant or improperly pled as per procedural law.

In opposition, Plaintiff argues that the motion to strike should be denied, asserting procedural flaws such as the County’s failure to quote verbatim the challenged portions. On the merits, Plaintiff maintains that the damages sought are permissible and that statutory provisions do allow for recovery of some damages against a public entity, thus the references to treble damages should remain in the complaint.

In reply, the County responds that the motion to strike should proceed on its merits, dismissing Plaintiff’s procedural arguments as unconvincing. The County reasserts that all requests for treble damages are fundamentally punitive and thus barred by section 818. Furthermore, it argues that the previous cases cited by Plaintiff do not support recovery under the circumstances, emphasizing that the immunity provided under the Government Code protects the County from these claims.

Motion to Strike

Under CCP §§ 435 and 436, the court may strike irrelevant, false, or improper matter from a pleading, or matter not drawn or filed in conformity with the laws of California. A motion to strike is the proper vehicle to remove a damages request that is barred by law as to the moving defendant. (CCP § 436(a).) However, a motion to strike is not a substitute for a demurrer when the moving party's true argument is that the underlying cause of action fails to state facts sufficient to constitute a claim; that challenge belongs to demurrer. (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 529.)

The County moves to strike portions of the FAC seeking past, present, and future damages and treble damages against the County, including allegations in paragraphs 35–37, 45, 56, 61–64, 75–76, 78, and the prayer for relief. It argues that the challenged relief is not recoverable against a public entity, is duplicative, or is otherwise improper. The County further argues that damages allegations tied to the first, fourth, and fifth causes of action should be stricken if those claims fail, and that treble damages against it are barred.

Procedural Objection Under CRC Rule 3.1322(a)

As an initial matter, Plaintiff argues that the motion should be denied because the County failed to quote verbatim the portions of the FAC sought to be stricken, as required by CRC Rule 3.1322(a). The County responds that it identified each challenged paragraph by number and by category of damages, which is sufficient where the motion targets entire paragraphs.

CRC Rule 3.1322(a) provides that a “notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.” (CRC Rule 3.1322(a) [emphasis added]; *Miszkewycz v. Cnty. of Placer* (2024) 99 Cal.App.5th 67, 73.)

Here, the County's notice identifies the challenged matter by paragraph number and by category of damages, specifically the treble damages references in FAC ¶¶ 45, 56, 64, 78, and Prayer paragraph 3, as well as paragraphs 35–37, 61–62, and 75–76 seeking past, present, and future damages. Because the motion targets entire numbered paragraphs, the rule's exception applies and paragraph number identification is sufficient for notice purposes. (*Miszkewycz, supra*, 99 Cal.App.5th at 75.) Although the notice does not quote verbatim each challenged sentence, the targeted material is ascertainable without uncertainty, and the parties have fully briefed the issues. On this record, any technical noncompliance is not fatal.

Damages Tied to Allegedly Defective Causes of Action

The County argues that Plaintiff “may not recover damages for causes of action subject to dismissal,” including the first cause of action for failure to summon medical care, fourth cause of action for IIED, and fifth cause of action for the Bane Act. (Def.'s Mot. 5:18–27.) Plaintiff responds that this argument improperly uses the motion to strike as a vehicle to challenge the sufficiency of causes of action, which is the province of a demurrer.

Paragraphs 35 and 36 (first cause of action), paragraphs 61 and 62 (fourth cause of action), and paragraphs 75 and 76 (fifth cause of action) allege ordinary compensatory and non-economic damages, including past and future physical and emotional injury, medical expenses, lost earnings, incidental expenses, and non-economic damages. (FAC ¶¶ 35, 36, 61, 62, 75, 76.) These damages are derivative of the underlying claims, not independently strikeable. Since the the demurrers to the first, fourth, and fifth causes of action are overruled, the predicate for striking these damages allegations no longer exists. DENIED as to FAC paragraphs 35, 36, 61, 62, 75, and 76.

Treble Damages Under CCP § 340.11 (Paragraphs 37, 45, 56, 64, and Prayer ¶ 3)

The County argues that treble damages under CCP § 340.11(b)(1) are punitive in nature and barred against a public entity by Gov. Code § 818.

Plaintiff concedes that treble damages under section 340.11 are foreclosed against the County. (Pl.'s Opp. 6:25–28, fn. 1.) Plaintiff states that he “does not seek treble damages against [the County] under § 340.11 as *Los Angeles Unified School Dist. v. Superior Court* (2023) 14 Cal.5th 758 forecloses such damages” and that such damages are sought against “Does 2 through 100, who are not identified to be ‘public entities.’” (*Id.*) However, the FAC as drafted does not contain that limitation. Paragraphs 37, 45, 56, and 64 each seek treble damages against “Defendants” generally, and the FAC defines “Defendants” collectively to include the County. (FAC ¶¶ 9, 45.) The FAC elsewhere demonstrates that Plaintiff knew how to carve out public entities when desired: paragraph 79 and the corresponding punitive damages prayer are expressly limited to non-public entity defendants only. (*Id.* at ¶ 79.) In contrast, the treble damages allegations contain no such carve-out. (*Id.* at ¶¶ 37, 45, 56, 64, 78, Prayer paragraph 3.)

Treble damages under the childhood sexual assault scheme are primarily punitive and therefore barred against a public entity. (*X.M. v. Sup. Ct.* (2021) 68 Cal.App.5th 1014, 1022; see also *Los Angeles Unified Sch. Dist. v. Sup. Ct.* (2021) 64 Cal.App.5th 549, 552.) Thus, section 340.11 treble damages are not legally viable against the County as a matter of law, and Plaintiff’s FAC, as currently pleaded, does not limit to non-public entity defendants, the proper disposition is to strike these allegations only as against the County.

The motion to strike is therefore be GRANTED in part as to FAC paragraphs 37, 45, 56, 64, and Prayer paragraph 3 insofar as they seek treble damages under section 340.11 from the County. The strike is limited to Defendant County of Riverside only. Leave to amend is granted solely to add an express carve-out making clear those treble-damages allegations are asserted only against non-public entity defendants.

Treble Damages Under Civ. Code § 52 (Paragraph 78 and Prayer paragraph 3)

The County argues that treble damages sought in paragraph 78 under Civ. Code § 52(a) related to the Bane Act are likewise punitive in nature, and therefore, barred against a public entity under Gov. Code § 818.

Civ. Code § 52(a) authorizes recovery for Bane Act violations, specifying that a plaintiff may receive “actual damages . . . up to a maximum of three times the amount of actual

damage but in no case less than four thousand dollars (\$4,000), and any attorney's fees[.]” (Civ. Code § 52(a).) The County's position rests on the premise that such treble damages do not serve a compensatory purpose but are purely punitive.

Plaintiff counters that statutory treble damages can still be pursued against public entities when these damages serve nonpunitive purposes. Citing cases like *Los Angeles County Metropolitan Transportation Authority v. Superior Court* (2004) 123 Cal.App.4th 261 (“MTA”), *Kelly v. Yee* (1989) 213 Cal.App.3d 336, 342, and *Wiley v. Kern High School District* (2024) 107 Cal.App.5th 765, Plaintiff argues that treble damages are permissible as long as they are not aimed primarily to punish the County.

In *MTA*, the court held that the \$4,000 statutory minimum in Civ. Code § 52(b)(2) serves a compensatory purpose—it ensures plaintiffs receive meaningful recovery when actual damages are difficult to quantify or prove. (*MTA*, *supra*, 123 Cal.App.4th at 273.) Because that minimum fills a gap in compensation rather than punishing the defendant, it is not barred by Gov. Code § 818. However, the treble damages multiplier in section 52(a) operates differently. It scales in proportion to actual damages already proven, which raises the question whether it is punitive rather than compensatory. Thus, the exception recognized for section 52(b)(2) does not automatically extend to section 52(a), but neither has the County demonstrated that treble damages under section 52(a) are categorically punitive so as to be barred by Gov. Code § 818. DENIED

6.

CASE #	CASE NAME	HEARING NAME
CVPS2509978	BREWER VS CRYSTAL CHRYSLER DODGE JEEP RAM	HEARING RE: DEFENDANT'S MOTION TO COMPEL DEPOSITION

Tentative Ruling: No tentative ruling. Hearing will be conducted on Tuesday August 11, 2026 at 8:30 a.m. in Department PS2.

Plaintiff Benjamin Brewer brings this Song-Beverly action regarding a 2024 Jeep Wrangler that has defects to the electric battery, engine, transmission and electrical system. The complaint, filed 6/23/25, asserts: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of implied warranty of merchantability; (5) negligent repair; and (6) fraudulent concealment. Trial is not set.

Defendants move to compel Plaintiff's deposition to take place within 15 days. On 11/20/25, Defendants served a notice of deposition for deposition to take place on 2/3/26. Plaintiff's counsel emailed unavailability and objected. Defendants followed up asking for alternative dates, but Plaintiff failed to provide any dates.

In an untimely opposition, Plaintiff contends that he is seeking to dismiss the claims and requests the court continue the hearing 30 days to allow the dismissal or deem the motion as moot.

Motion to Compel Deposition

Service of a proper deposition notice is sufficient to compel a party to appear, testify and produce records in their possession without a subpoena. (Code Civ. Proc., §

2025.280(a).) Section 2025.450(a) states: “If after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (emphasis added.) The parties are required to meet and confer, or in the case of a nonappearance, the moving party inquired about the non-appearance. (*Id.* at § 2025.450(b)(2).)

Plaintiff does not dispute that he failed to appear, but instead, intends to dismiss the action.

The court continued the matter on July 30, 2026 to allow Plaintiff to appear at deposition or dismiss the action. No new papers have been submitted.